

Monitoring Employee Software Usage in Nigeria: What the Law Requires Now

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Employee monitoring software — tracking web browsing, application use, keystrokes, or productivity metrics — gives employers real visibility into how work time is spent. In some countries, employers can deploy this kind of software on company devices with little formality. In Nigeria, doing so without a proper legal basis is a genuine compliance risk, and the rules governing that basis have changed substantially in the last few years.

The Constitutional Starting Point

Section 37 of the 1999 Constitution guarantees and protects the privacy of citizens, their homes, correspondence, and communications. Everything in Nigeria's data protection framework sits underneath that constitutional guarantee, and any monitoring programme that touches identifiable information about employees — which most monitoring software inevitably does — has to be justified against it.

The Law Has Moved On From Consent-Only Thinking

For several years, the operative instrument was the Nigeria Data Protection Regulation (NDPR) 2019, issued by the National Information Technology Development Agency (NITDA) under its mandate to develop electronic governance regulation, which leaned heavily on consent as the basis for lawful processing, with a breach of the NDPR treated as an offence under Section 17(4) of the NITDA Act 2007. That regime has been fully superseded. The Nigeria Data Protection Act 2023 (NDPA) — Nigeria's first comprehensive data protection statute — took effect in June 2023 and established the Nigeria Data Protection Commission (NDPC) as an independent regulator with real enforcement powers, including its own penalty regime that has now replaced the old NITDA Act basis described above. The NDPR was finally phased out entirely from 19 September 2025, when the NDPC's General Application and Implementation Directive (GAID) 2025 took effect, leaving the NDPA (read with the GAID) as the sole governing framework.

This matters for monitoring software specifically because the NDPA, unlike the old NDPR's near-total reliance on consent, recognises several lawful bases for processing personal data — including legitimate interest. The NDPC has signalled, consistent with international data protection guidance, that employee consent is an inherently weak basis for workplace monitoring because of the power imbalance between employer and employee: an employee rarely feels free to refuse. The more defensible route for most monitoring programmes today is a documented Legitimate Interest Assessment — a written analysis showing the employer considered the impact on employee privacy, concluded the monitoring is proportionate to a genuine business need, and adopted the least intrusive method available — rather than a bare consent form.

What the Data Collected Actually Is

Data captured by monitoring software — browsing history, application usage, screenshots, keystrokes, location data — falls squarely within the NDPA's definition of personal data: any information relating to an identified or identifiable individual. Whichever lawful basis an employer relies on, several obligations apply regardless: the specific purpose of collection must be made known to employees before data is obtained; processing must be limited to what is proportionate to that purpose (continuous location tracking after clock-out, for instance, is difficult to justify even where in-hours tracking for safety or logistics is defensible); a clear, accessible privacy notice must describe what is collected, why, and who can access it; appropriate

technical and organisational security measures must protect the data collected; and a Data Protection Impact Assessment is required before deploying higher-risk monitoring, such as biometric tracking.

Registration and Enforcement Exposure

Employers that process data at sufficient scale — broadly, more than 200 data subjects within a six-month period, or that operate in sectors the NDPC treats as significant — may be classified as a Data Controller or Processor of Major Importance (DCPMI), triggering registration and annual compliance-audit obligations with the NDPC. The NDPA's penalty structure is tiered: for DCPMIs, fines of up to ₦10,000,000 or 2% of the preceding year's gross annual revenue, whichever is higher; for other organisations, up to ₦2,000,000 or 2% of revenue, whichever is higher. Failure to comply with an NDPC order can also carry imprisonment of up to one year. The NDPC has shown it will use these powers — it has issued fines running into the hundreds of millions of naira, and in one case over \$200 million, against major organisations for data protection breaches, so this is now an actively enforced area rather than a theoretical one.

The Practical Takeaway

An employer that wants to deploy monitoring software today should: identify and document its lawful basis (a Legitimate Interest Assessment is usually the more defensible route than consent alone); tell employees clearly what is being monitored, why, and who can see it, before switching anything on; keep the monitoring proportionate to the stated purpose; secure the data properly; run a DPIA for higher-risk features; and check whether the scale of processing brings the organisation within DCPMI registration territory.

A note on currency of the law

The Nigeria Data Protection Regulation 2019 no longer governs this area. The Nigeria Data Protection Act 2023 is now the primary statute, the Nigeria Data Protection Commission is now the regulator, and the transitional NDPR framework was formally retired on 19 September 2025 when the GAID 2025 took effect.

The lawful-basis analysis has broadened beyond consent, and the penalty figures have changed materially from the earlier NDPR-based regime. Any advice or internal policy still framed purely around obtaining employee consent under the NDPR should be revisited.

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